

## INFORMATION SHEET – YOUR COMPLAINT

Your complaint has been assessed by IBAC and determined not to be a **Public Interest Complaint** under the *Public Interest Disclosures Act 2012* (PID Act). The letter to which this information sheet is attached tells you what IBAC has decided to do with your complaint. IBAC can decide to:

- Not investigate your complaint; or
- In some circumstances refer your complaint to another agency that IBAC considers is more appropriate to handle your complaint, including the agency you have complained about; or
- In some circumstances provide your information to another integrity agency, law enforcement agency or other agency; or
- Advise you to make a complaint to an entity that IBAC considers may be able to deal with your complaint, which could include the agency you have complained about.

Depending on IBAC's decision, you have different rights and obligations placed upon you by the PID Act and the *Independent Broad-based Anti-corruption Commission Act 2011* (IBAC Act). This information sheet tells you about:

- your rights and obligations under the PID Act and the IBAC Act;

Enclosed with this information sheet is a copy of Part 6 of the PID Act. This section is referred to in this information sheet.

### Your Rights and Protections

The protections set out below apply from the time you made your complaint to either IBAC or another entity.

Part 6 of the PID Act sets out your rights and protections as a person making a disclosure. Part 6 of the PID Act gives you legal protections against:

- civil, criminal or disciplinary action being taken against you for making the disclosure
- having committed any offence by breaching any confidentiality provisions or obligations you might have with respect to the information you have provided
- reprisal, being detrimental action taken against you by another person because of your disclosure

If defamation proceedings are brought against you as a result of making a disclosure, the Act also provides you with a defence.

The Act gives you the right to:

- sue for damages for any injury, loss or damage suffered as a result of a person taking detrimental action in reprisal
- obtain damages and reinstatement of employment where an employer is found guilty of taking detrimental action

- seek an injunction to stop actions in reprisal
- request a transfer of employment (if you work for or in the Victorian public sector) where a person believes detrimental action has been, is being, or will be, taken.

## Limitations on protections

Now that your complaint has been determined to be not a public interest complaint under the PID Act, a defence will be available in any proceeding against a person who took detrimental action. This is on the basis that they took that detrimental action knowing it was after IBAC had determined the disclosure was not a public interest complaint.

Further, the Act does not protect you from the following actions that might be taken against you by your employer or by IBAC or another investigating entity:

- legitimate performance management action being taken by your employer, that is unrelated to the fact that you have made a complaint; or
- criminal or civil action being taken against you for any wrongdoing on your part, even if you have disclosed that wrongdoing under the PID Act as part of your complaint; or
- criminal or civil action being taken against you if you have knowingly provided false or misleading information intending that the information be acted on as a public interest disclosure.

Please contact IBAC if you have any further questions.

**Phone:** 1300 735 135

**Post:** IBAC, GPO Box 24234, Melbourne, Victoria 3000

*This information sheet contains a summary of elements of the Act, provided for information and educational purposes. It is not a substitute for referring to the provisions of the Act itself or for obtaining legal advice.*